

23SMCV05788 23SMCV05788

County: los-angeles

Division: Civil Law and Motion

Department: M

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Case Number: 23SMCV05788 Hearing Date: June 25, 2026 Dept: M

CASE NAME: Daly v. Vintage at 425 Broadway Apartment, et al.

CASE NO.: 23SMCV05788

MOTION: Motion

to Compel Initial Discovery Responses

HEARING DATE: 6/25/2026

Legal

Standard

Where there has been no timely response to a CCP section 2031.010 inspection demand, the demanding party must seek an order compelling a response. (CCP § 2031.300.) Failure to timely respond waives all objections, including privilege and work product. Thus, unless the party to whom the demand was directed obtains relief from waiver, he or she cannot raise objections to the documents demanded. There is no deadline for a motion to compel responses. Likewise, for failure to respond, the moving party need not attempt to resolve the matter outside court before filing the motion. Where the motion seeks only a response to the inspection demand, no showing of "good cause" is required.

If a

party to whom interrogatories are directed fails to serve a timely response, the propounding party may move for an order compelling responses and for a monetary sanction. (CCP § 2030.290(b).) The statute contains no time limit for a motion to compel where no responses have been served. All that need be shown

in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (Leach v. Superior Court (1980) 111 Cal. App. 3d 902, 905-906.)

Pursuant

to CCP section 2033.280(b), a party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with Section 2033.010). "Failure to timely respond to RFA does not result in automatic admissions. Rather, the propounder of the RFA must 'move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction' under § 2033.010 et seq." (CCP, § 2033.280(b).) The court "shall" grant the motion to deem RFA admitted, "unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." (CCP, § 2033.280(c).)

ANALYSIS

Defendant Orkin Services of California Inc. moves to compel Plaintiff Star Daly to serve initial discovery responses as to a) Request for Production of Documents (Set One); b) Form Interrogatories, Set One; c) Special Interrogatories, Set One; and d) Request for Admission, Set One. Defendant requests sanctions against Plaintiff at \$2,370.00 per motion.

Defendant demonstrates proper service of the subject discovery. (Anselmo Decl., ¶¶ 2-4, Exs. A.) Plaintiff did not respond to the subject discovery. (Id., ¶¶ 4-5.)

Accordingly, the motions are GRANTED. Plaintiff is ordered to provide code compliant responses to the RPDs, FROGs and SROGs, without objection, within 20 days. The RFAs are deemed admitted. Monetary sanctions are granted in the total amount of \$2,550.00 against Plaintiff. Sanctions are to be paid to defendant's counsel of record within 30 days.